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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWANFORBI,
Plaintiff,

v.

UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,
Defendants.

Case No.:

DEFENDANT UNITED PARCEL SERVICE, INC.'S NOTICE OF REMOVAL TO FEDERAL COURT

Action Filed: July 15, 2026 in the Superior Court of the State of California for the County of San Joaquin, Case No. STK-CV-UWT-2026-9113

TO THE HONORABLE COURT AND THE PLAINTIFF.

Defendant United Parcel Service, Inc. ("UPS") files this notice consistent with the provisions of 28 U.S.C. §§ 1332(a) and 1441(a)-(b).

I. JURISDICTION AND VENUE

1. Removal of this action is proper under 28 U.S.C. §§ 1332(a) and 1441(a)-(b) because complete diversity of citizenship exists between the parties and the amount in controversy exceeds $75,000, exclusive of interest and costs, as explained in detail below. 28 U.S.C. §§ 1332(a), 1441(a)-(b), and 1446(b).

2. Venue is proper in this Court under 28 U.S.C. §§ 84(b), 1391, and 1446(a).

3. Pursuant to Federal Rule of Civil Procedure 38(b)(1), UPS demands a jury trial.

II. STATE COURT ACTION

4. On July 15, 2026, Plaintiff Brendan Ngwanforbi ("Plaintiff") filed a Complaint against United Parcel Service, Inc., an Ohio corporation ("UPS"), and DOES 1 to 10 in the Superior Court of the State of California for the County of San Joaquin. *See* Exh. 1, Pltf's Compl.

5. On July 22, 2026, Plaintiff served UPS with a copy of the Summons, Complaint, Civil Case Cover Sheet, Notice of Case Management Conference, and Notice of Case Assignment, via personal service. *Id.*

6. Plaintiff's Complaint asserts the following claims, allegedly arising from his employment with UPS: (1) violations of Cal. Penal Code § 290.46; (2) failure to hire in violation of public policy; (3) violation of Cal Civ. Code § 1786; (4) invasion of privacy; (5) negligence per se; and (6) unlawful business practices. Exh. 1, Pltf's Compl., ¶¶32-64.

7. Plaintiff seeks actual and special damages, compensatory damages, general damages, costs of suit—including attorneys' fees even though Plaintiff is proceeding In Pro Per—punitive damages, and other relief that the Court deems just and proper. *Id.* at Pltf's Compl., Prayer for Relief.

8. No proceedings, case management conferences, or filings, other than those described above, have occurred in this matter in state court.

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III. REMOVAL OF THIS ACTION IS TIMELY.

9. A notice of removal must be filed "within 30 days after the receipt by the defendant, through service or otherwise," of the initial pleading from which removability can be ascertained. 28 USC § 1446(b)(1).

10. Here, UPS was served on July 22, 2026, by personal service. *See* Exh. 1. Therefore, this Removal is well within the 30-day window, and is timely.

IV. REMOVAL IS PROPER BASED ON DIVERSITY OF CITIZENSHIP.

A. Complete Diversity Exists Between All Parties.

11. When a plaintiff files suit in state court, but could have invoked the original jurisdiction of the federal courts, the defendant may remove the action to federal court. 28 U.S.C. § 1441(a).

12. Pursuant to 28 U.S.C. § 1332(a)(1), a district court has jurisdiction over a civil action when the amount in controversy exceeds $75,000 and the action is between citizens of different states. Here, Plaintiff and UPS are not citizens of the same state.

13. To remove to federal court, a defendant need only plausibly allege the requirement for federal jurisdiction via "a short and plain statement of the grounds for removal"—no evidentiary submissions are required. *Dart Cherokee Basin Operating Co., LLC v. Owens*, 574 U.S. 81, 135 S. Ct. 547, 553 (2014) citing 28 U.S.C. § 1446(a).

14. A natural person's citizenship is determined by their state of domicile. *See Lew v. Moss,* 797 F.2d 747, 749 (9th Cir. 1986). "A person's domicile is her permanent home, where she resides with the intention to remain or to which she intends to return." *Kanter v. Warner-Lambert Co*., 265 F.3d 853, 857 (9th Cir. 2001). The Ninth Circuit explained in *Owens v. Huntling,* 115 F.2d 160 (9th Cir. 1940) that a person is "domiciled" in a location where they established a "fixed habitation or abode in a particular place." *Id.* at 162. Here, Plaintiff is a citizen of California, and there is ample evidence that California is his permanent home.

15. Plaintiff currently resides in California. Plaintiff's application for employment lists his address at a residence in Stockton, California 95204. *See* Ashley Felsing Declaration ("Felsing Dec."), ¶ 6.

16. Importantly, additional documents demonstrate that Plaintiff has been a resident of California long before the date of this removal, showing that he has established a "fixed habitation" in California. *See Owens,* 115 F.2d at 162. Plaintiff's job application to UPS also listed his residence at the time of the July 2024 application as the same address in Stockton, California 95204. These factors make clear Plaintiff is a citizen of California, and underscore the fact that California is Plaintiff's "permanent home."

17. Pursuant to 28 U.S.C. § 1332(c), a corporation is deemed to be a citizen of every state by which it has been incorporated and of the state where it has its principal place of business. UPS is not a citizen of California because it is neither incorporated in California, nor does it have its principal place of business in California. Felsing Dec., ¶¶ 3-4. UPS is incorporated in Ohio. *Id*. at ¶ 3. In *Hertz Corp. v. Friend*, 130 S. Ct. 1181 (2010), the Supreme Court held that the principal place of business is the "nerve center" where the company's high-level officers direct, control and coordinate the company's activities. *Id*. at 1184-1185. UPS has its headquarters and principal place of business in Atlanta, Georgia. Felsing Decl., ¶4. UPS's high-level officers direct, control, and coordinate the Company's operations from Georgia. *Id*. Therefore, for purposes of diversity of citizenship, UPS is a citizen of Ohio and Georgia.

18. As such, complete diversity exists between all current parties and removal of this action is proper because Defendant is a citizen of Ohio and Georgia, and Plaintiff is a citizen of California. *See* 28 U.S.C. § 1332(a)(1).

B. Plaintiff's Use of Fictitious Defendants DOES 1-10 Does Not Defeat Diversity.

19. When "determining whether a civil action is removable on the basis of the jurisdiction under section 1332(a) of this title [28 USCS § 1332(a)], the citizenship of defendants sued under fictitious names shall be disregarded." 28 U.S.C. § 1441(b)(1).

20. Plaintiff did not identify any individual defendants other than DOES 1-50, who—based on ample caselaw—amount to fictitious defendants. The identification of DOE defendants does not defeat diversity for purposes of removal. *See Soliman v. Philip Morris Inc.*, 311 F.3d 966, 971 (9th Cir. 2002); *see also Ruelaz v. Leprino Foods Co.*, No. 1:24-CV-01017-BAM, 2025 WL 25549, at *2 (E.D. Cal. Jan. 3, 2025) (stating "courts may never consider allegations relating to Doe

defendants when assessing diversity for removal purposes).

21. The mere fact that Plaintiff may amend his complaint at a later date is no basis to prevent removal, because the identification of a fictitious defendant is only relevant at the time Plaintiff will seek leave to amend his complaint. *See Soliman*, 311 F.3d 966 at 971.

22. Therefore, complete diversity exists between Plaintiff and UPS, and this case may be removed.

C. The Amount in Controversy Exceeds $75,000.

23. Plaintiff's allegations make clear the amount in controversy exceeds the sum or value of $75,000, exclusive of interest and costs.

24. When a plaintiff does not specify the amount in controversy on the face of the complaint, "the removing defendant bears the burden of establishing, by a preponderance of the evidence, that the amount in controversy exceeds the jurisdiction threshold." *Chavez v. JP Morgan Chase &Co.*, 888 F.3d 413, 416 (9th Cir. 2018) (quoting *Urbino v. Orkins Servs. Of Cal., Inc*., 726 F.3d 1118, 1121-22 (9th Cir. 2013). In assessing the amount in controversy, the court may consider "allegations in the complaint and in the notice of removal, as well as summary-judgement-type evidence relevant to the amount in controversy" 888 F.3d at 416. Furthermore, a court assessing the amount in controversy "assume[s] that the allegations of the complaint are true and assume[s] that a jury will return a verdict for the plaintiff on all claims made in the complaint." *Campbell v. Vitran Exp., Inc.*, 471 F. App'x 646, 648 (9th Cir. 2012) (quoting *Kenneth Rothschild Trust v. Morgan Stanley Dean Witter*, 199 F.Supp. 2d 993, 1001 (C.D. Cal. 2022)).

25. As a result, this court should consider all recoverable damages, including: (1) compensatory damages; (2) emotional distress damages; (3) punitive damages; and (4) attorneys' fees. *Id.*; *Galt G/S v. JSS Scandinavia,* 142 F.3d 1150, 1155-1156 (9th Cir. 1998); *see also* Chavez, 888 F.3d at 418 (holding "the amount in controversy includes all relief claimed at the time of removal to which the plaintiff would be entitled if she prevails").

26. Plaintiff does not quantify his total alleged damages in his Complaint, but does, however, assert claims for: (1) violations of Cal. Penal Code § 290.46; (2) Failure to Hire in violation of public policy; (3) violation of Cal Civ. Code § 1786; (4) invasion of privacy; (5) negligence per

se; and (6) unlawful business practices. Exh. 1, Pltf's Compl., ¶¶32-64.

27. Plaintiff claims he is entitled to special damages, compensatory damages, general damages, costs of suit—including attorneys' fees, punitive damages, and other relief that the Court deems just and proper. Exh. 1, Pltf's Compl., Prayer for Relief.

28. Considering Plaintiff's claims for damages it is facially apparent from the Complaint that the amount in controversy exceeds $75,000.

29. Moreover, in the caption of his Complain, Plaintiff requests an unlimited amount of damages exceeding $35,000. *See* Exh. 1, pg. .

30. Plaintiff applied to be a loader/unloader, and would have been paid an hourly rate of $21.00. On average he would have worked 16 hours per week. Plaintiff alleges that he has experienced lost wages (past and present) due to UPS's alleged actions. *See* Exh. 1, Pltf's Compl., ⁋⁋ 29, 42, 48, 53, 58, and 63. From the time of Plaintiff's application to the time of trial approximately eighteen (18) months from now, his potential economic damages may total as much as $60,144.00, calculated at $21/hour multiplied by sixteen (16) hours per week multiplied by one hundred and seventy-nine (179) weeks. If the case proceeds to trial in approximately thirty-six (36) months from now, his potential economic damages may total as much as $88,032.00.

31. Ninth Circuit precedent makes clear that the amount in controversy is the "amount at stake in the underlying litigation," and that, "if a plaintiff claims at the time of removal that her termination caused her to lose future wages, and if the law entitles her to recoup those future wages if she prevails, then there is no question that future wages are 'at stake' in the litigation, whatever the likelihood that she will actually recover them." *Chavez*, 888 F.3d at 417 (9th Cir. 2018) (cleaned up) (citing *Gonzales v. CarMax Auto Superstores, LLC*, 840 F.3d 644, 648-49 (9th Cir. 2016)). Further, given that a trial date has not been set yet, and it is unknown whether Plaintiff will be unemployed at that time, additional lost wages and benefits may accrue.

32. Plaintiff also requests compensatory noneconomic damages, punitive damages, attorneys' fees, and cost of the suit. *See* Exh. 1, Pltf's Compl., Prayer for Relief.

i. *Plaintiff's Claim for Attorneys' Fees Further Underscores that This Court Has Subject Matter Jurisdiction.*

33. Attorneys' fees may be considered in determining the amount in controversy. *Galt G/S v. JSS Scandinavia*, 142 F.3d 1150, 1156 (9th Cir. 1998)). While Plaintiff is proceeding In Pro Per, his claim for attorney's fees preemptively accounts for his retaining counsel, and the fees associated with future representation should be included in the calculation of the controversy. Further, attorneys' fees should not be limited as of the date of removal and "future [attorneys' fees] are at stake in the litigation, and the defendant may attempt to prove that future attorneys' fees should be included in the amount in controversy." *Fritsch v. Swift Transportation Company of Arizona, LLC*, 899 F.3d 785, 794 (9th Cir. 2018).

34. In sum, even a conservative estimate of Plaintiff's compensatory damages alone nearly exceeds the $75,000 threshold. Plaintiff's additional claims for emotional distress damages, punitive damages, and attorneys' fees clearly place the amount in controversy above the jurisdictional threshold.

35. Here, based on Plaintiff's own allegations, the amount in controversy exceeds the sum or value of $75,000, exclusive of interest and costs.

V. <u>UPS Has Fulfilled All Requirements of 28 U.S. Section 1446.</u>

36. **Removal is timely.** UPS timely filed this Notice within thirty days of Service of Plaintiff's Complaint. 28 U.S.C. § 1446(b); F.R.C.P., Rule 6(a). UPS was served with Plaintiff's Complaint via personal service on July 22, 2026. Thus, the thirty-day deadline to file for removal is August 21, 2026.

37. **Removal to this Court is proper.** Plaintiff's Complaint was filed in the Superior Court of the County of San Joaquin. This Court is part of the division in which the Superior Court action is pending. 28 U.S.C. §§ 84(b) and 1446(a).

38. **All Pleadings and process in the State Court Action have been submitted with this Removal.** Other than the documents submitted with this Notice of Removal, no other pleadings, process, orders, or other papers in this case have been filed, served, or received by UPS.

39. **Notice has been provided to all parties and the state court.** UPS filed a copy of this Notice of Removal with the clerk of the court and is serving a copy on Plaintiff. 28 U.S.C. § 1446(d).

40. As a result, UPS respectfully requests that this lawsuit be removed from the Superior

Court of San Joaquin, California, in which it is now pending, to this District Court of the United States, Eastern District of California.

DATE: August 20, 2026

MARTENSON, HASBROUCK & SIMON LLP

By: */s/ Vanessa W. Mott*
VANESSA W. MOTT
Attorney for Defendant
UNITED PARCEL SERVICE, INC.

EXHIBIT 1

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdla@gmail.com

FILED
SUPERIOR COURT SAN JOAQUIN
2026 JUL 15 A 9:39
STEPHANIE BOHRER, CLERK
MIA STIPE
BY DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

STK-CV-UWT-2026-9113

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **UNITED PARCEL SERVICE, INC., and DOES 1 through 10, inclusive,** Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES** (1) Violation of Cal. Penal Code § 290.46(j)(2)(E); (2) Failure to Hire in Violation of Public Policy; (3) Violation of ICRAA (Cal. Civ. Code § 1786 et seq.); (4) Invasion of Privacy (Cal. Const., Art. I, § 1); (5) Negligence Per Se; (6) Unlawful Business Practices (Bus. & Prof. Code § 17200 et seq.) *[UNLIMITED CIVIL]* *[JURY TRIAL DEMANDED]*

INTRODUCTION

1. This is a civil action for damages and other relief arising from Defendant United Parcel Service, Inc.'s ('UPS') violation of California Penal Code section 290.46(j)(2)(E), which categorically prohibits any person or entity from using information derived from California's Megan's Law public sex offender registry for purposes relating to employment.

2. In connection with Plaintiff BRENDAN NGEHSI NEWANFORBI's application for employment, UPS procured a background screening report through its third-party background

check vendor, First Advantage. On information and belief, that report disclosed Plaintiff's status as a registrant on California's sex offender registry. On information and belief, UPS accessed and used that registry information—in whole or in substantial part—as the basis for its decision to deny Plaintiff employment, in direct violation of Penal Code section 290.46(j)(2)(E).

3. The Legislature enacted section 290.46(j) to protect registered sex offenders from a specific category of harm: the use of Megan's Law registry data—which is made publicly available for a narrow protective purpose—to blackball them from employment. The civil remedy provision, section 290.46(j)(4)(A), authorizes a civil action for the greater of actual damages or $25,000, plus attorney fees. Plaintiff seeks those remedies, together with all other relief this Court deems just and proper.

PARTIES

4. Plaintiff BRENDAN NGEHSI NEWANFORBI ('Plaintiff') is a natural person who, at all times relevant to this action, resided in Stockton, California, County of San Joaquin, State of California.

5. Defendant UNITED PARCEL SERVICE, INC. ('UPS' or 'Defendant') is a Delaware corporation authorized to do business and doing business in the State of California, including in San Joaquin County. At all times relevant herein, UPS was an 'employer' within the meaning of California law and regularly conducted employment activities and background screening operations in California.

6. The true names and capacities of Defendants Does 1 through 10, inclusive, are unknown to Plaintiff, who therefore sues said Defendants by such fictitious names pursuant to Code of Civil Procedure section 474. On information and belief, each Doe Defendant is in some manner legally responsible for the damages and injuries alleged herein. Plaintiff will seek leave to

amend this complaint when the true names and capacities of Does 1 through 10 are ascertained.

JURISDICTION AND VENUE

7. This Court has unlimited civil jurisdiction over this action because the amount in controversy exceeds $35,000, exclusive of interest and costs.

8. Venue is proper in San Joaquin County pursuant to Code of Civil Procedure section 395(a) because Plaintiff resides in the City of Stockton, San Joaquin County, California, and the injuries giving rise to this action were suffered by Plaintiff in this County.

9. This Court has personal jurisdiction over UPS because UPS is authorized to transact, and does transact, business in the State of California, including in San Joaquin County, and has purposefully availed itself of the privilege of conducting activities in this State, thereby subjecting itself to the jurisdiction of California courts.

FACTUAL ALLEGATIONS

A. General Allegations Regarding California Penal Code Section 290.46(j)

10. California Penal Code section 290.46 requires certain sex offenders to register with law enforcement and authorizes the California Department of Justice to make certain registrant information available to the public through an online database commonly referred to as the 'Megan's Law website.'

11. Section 290.46(j)(1) provides that a person is authorized to use information disclosed pursuant to that section only to protect a person at risk. Section 290.46(j)(2) enumerates uses of such information that are prohibited. Subsection (j)(2)(E) specifically prohibits use of Megan's

Law registry information 'for purposes relating to . . . [e]mployment.'

12. The prohibition in section 290.46(j)(2)(E) is categorical and admits no exception for private employers, background check companies, or any private actor making employment decisions. The Legislature's determination was explicit: sex offender registry information accessible through the Megan's Law website may not be used in employment decisions.

13. California Penal Code section 290.46(j)(4)(A) provides a civil remedy for violations: 'Any use of information disclosed pursuant to this section for a purpose other than that provided by paragraph (1) or another provision of law is punishable as a misdemeanor, and subject to a civil action for actual damages or twenty-five thousand dollars ($25,000), whichever is greater, by any person whose information was used for the prohibited purpose. The person whose information was wrongfully used may also bring an action for attorney's fees.'

14. Background screening companies that compile investigative consumer reports for employment purposes routinely access and include sex offender registry information in their reports. On information and belief, these companies also routinely include statutory warnings apprising employers of the prohibitions in section 290.46(j)(2)(E). Despite such warnings, some employers nonetheless use the registry information in their employment decisions, in direct violation of the statute.

15. UPS is a large national employer that regularly orders background screening reports from third-party vendors—including First Advantage—in connection with employment applications. On information and belief, UPS's background screening policies and practices result in the regular access to, and use of, sex offender registry information in employment decisions, notwithstanding the prohibition in Penal Code section 290.46(j)(2)(E).

B. Plaintiff's Application for Employment with UPS

16. In or around mid-2024, Plaintiff submitted an application for employment with UPS for a position in UPS's delivery and logistics operations in California. Plaintiff was qualified for the position sought.

17. As part of its standard pre-employment screening process, UPS initiated a background check on Plaintiff through First Advantage (operating under the domain 'fadv.com'), a third-party investigative consumer reporting agency that provides background screening services to employers nationwide.

18. On or about July 22, 2024, Plaintiff received, at his email address, an electronic notification from First Advantage (sent from DoNotReply@fadv.com) bearing the subject line: 'Pre Adverse Action Notification regarding your application with UPS.' The notification advised Plaintiff to review the pre-adverse action notification for his background screening report for 'UNITED PARCEL SERVICE' via a link to First Advantage's portal.

19. The pre-adverse action notice sent to Plaintiff on July 22, 2024 constitutes the pre-adverse action notification required under the federal Fair Credit Reporting Act, 15 U.S.C. section 1681b(b)(3)(A), and the California Investigative Consumer Reporting Agencies Act, Civil Code section 1786.40, before an employer takes adverse action based in whole or in part on a background screening report.

C. Background Check Process and Contents of the Screening Report

20. On information and belief, First Advantage conducted a background screening report on Plaintiff and transmitted that report to UPS on or before July 22, 2024—the date of the pre-adverse action notice.

21. On information and belief, the background screening report prepared by First Advantage and provided to UPS contained information derived from California's Megan's Law sex offender registry maintained pursuant to Penal Code section 290.46, identifying Plaintiff as a registrant on that registry.

22. On information and belief, the First Advantage background screening report transmitted to UPS included a statutory notice or disclaimer informing UPS of the existence and requirements of California Penal Code section 290.46(j)(2)(E) and expressly warning UPS that the sex offender registry information contained in the report was prohibited from use in employment decisions. Background screening companies routinely include such statutory warnings in reports provided to California employers.

23. Despite any such warning, on information and belief, UPS reviewed, accessed, and considered the sex offender registry information contained in the First Advantage background screening report in making its employment decision regarding Plaintiff.

24. On or about July 22, 2024, Plaintiff received a link via First Advantage's portal through which Plaintiff could access the background screening report. That link has since expired, and Plaintiff no longer has access to the underlying report or its attachments. Plaintiff therefore pleads on information and belief as to the specific contents of the report insofar as those contents relate to sex offender registry information and the basis for UPS's adverse action.

D. The Adverse Employment Action

25. On or about July 31, 2024—nine (9) days after the pre-adverse action notice—Plaintiff received, at his email address, a second electronic notification from First Advantage (sent from DoNotReply@fadv.com) bearing the subject line: 'Final Adverse Action Notification regarding your application with UPS.' This notification confirmed that UPS had taken final adverse action

against Plaintiff, definitively denying him employment.

26. On information and belief, UPS's decision to take final adverse action against Plaintiff—denying him employment—was based, in whole or in substantial part, on Plaintiff's status as a registrant on California's sex offender registry as disclosed in the First Advantage background screening report.

27. UPS did not provide Plaintiff with any written communication identifying any basis for the adverse action other than the background screening report. No other disqualifying information known to Plaintiff existed in his application or background report that would provide an independent, lawful basis for denying him employment.

28. On information and belief, absent UPS's access to and use of Plaintiff's sex offender registry status, Plaintiff would have been offered and would have accepted the employment position with UPS.

E. Damages

29. As a direct and proximate result of UPS's unlawful conduct, as alleged herein, Plaintiff has suffered and continues to suffer substantial damages, including: (a) lost wages and employment benefits that Plaintiff would have earned but for UPS's unlawful failure to hire him; (b) lost career opportunity and professional advancement in the delivery and logistics industry; and (c) severe emotional distress, including anxiety, humiliation, shame, and mental anguish arising from being unlawfully denied employment because of his registry status.

30. Plaintiff has experienced significant financial hardship as a direct result of losing the UPS employment opportunity, which caused immediate and ongoing economic harm to Plaintiff and his household.

31. The acts and omissions of UPS described herein were undertaken willfully, with knowledge that Plaintiff's registry information was protected from employment use under California law, and in conscious disregard of Plaintiff's statutory and constitutional rights.

FIRST CAUSE OF ACTION

Violation of California Penal Code Section 290.46(j)(2)(E)

Unlawful Use of Sex Offender Registry Information in Employment Decisions

(Against All Defendants)

32. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

33. California Penal Code section 290.46(j)(1) authorizes persons to use information disclosed pursuant to that section only to protect a person at risk. Section 290.46(j)(2)(E) categorically prohibits any use of such information 'for purposes relating to . . . [e]mployment.' There is no exception for private employers making general hiring decisions.

34. Plaintiff is a registrant on California's sex offender registry within the meaning of Penal Code section 290.46. On information and belief, Plaintiff's registry status was disclosed in the background screening report compiled by First Advantage and provided to UPS in or about July 2024.

35. On information and belief, UPS accessed, reviewed, and used the sex offender registry information contained in Plaintiff's First Advantage background screening report for purposes relating to employment—specifically, in making the decision to deny Plaintiff employment on or about July 31, 2024.

36. UPS's use of Plaintiff's sex offender registry information for employment purposes was not authorized under Penal Code section 290.46(j)(1) or any other provision of law. The position at issue was in UPS's general delivery and logistics operations, and no facts suggest that any specifically identified vulnerable person at risk was exposed to any particular risk from

Plaintiff's employment. The narrow 'protect a person at risk' exception does not apply.

37. Pursuant to Penal Code section 290.46(j)(4)(A), Plaintiff is entitled to bring a civil action against UPS for actual damages or $25,000, whichever is greater, plus attorney fees and costs.

SECOND CAUSE OF ACTION

Failure to Hire in Violation of Public Policy

(Tameny Claim)

(Against All Defendants)

38. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

39. California recognizes a tort claim for wrongful failure to hire where an employer refuses to hire an applicant for reasons that violate a fundamental public policy of the State of California. (See Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167; City of Moorpark v. Superior Court (1998) 18 Cal.4th 1143.)

40. California Penal Code section 290.46(j)(2)(E) embodies a fundamental public policy of the State of California. The Legislature has expressly declared, in a statute codified in the Penal Code and backed by civil and criminal penalties, that employers must not use sex offender registry information in employment decisions. This prohibition reflects a legislative determination that the unrestricted use of Megan's Law data for employment gatekeeping is harmful to individual registrants and to the public interest in meaningful rehabilitation and reintegration.

41. On information and belief, UPS denied Plaintiff employment based, in whole or in substantial part, on Plaintiff's status as a registrant on California's sex offender registry, as disclosed in the First Advantage background screening report, in direct violation of the public policy embodied in Penal Code section 290.46(j)(2)(E).

42. By refusing to hire Plaintiff for a reason that violates the fundamental public policy of the State of California, UPS is liable to Plaintiff for all damages resulting from its unlawful failure to hire, including lost wages and benefits, emotional distress, and other damages according to proof at trial.

43. UPS's conduct was willful, malicious, and in conscious disregard of Plaintiff's rights and of the public policy of the State of California. Plaintiff is therefore entitled to an award of punitive damages pursuant to Civil Code section 3294.

THIRD CAUSE OF ACTION

Violation of the Investigative Consumer Reporting Agencies Act

(Cal. Civ. Code § 1786 et seq.)

(Against All Defendants)

44. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

45. California's Investigative Consumer Reporting Agencies Act, Civil Code section 1786 et seq. ('ICRAA'), regulates the procurement and use of investigative consumer reports, including background screening reports, for employment purposes in California. On information and belief, First Advantage is an 'investigative consumer reporting agency' within the meaning of Civil Code section 1786.2(d), and the background screening report prepared by First Advantage and provided

to UPS constitutes an 'investigative consumer report' within the meaning of Civil Code section 1786.2(c).

46. On information and belief, UPS's procurement and use of the First Advantage background screening report, which contained sex offender registry information prohibited from employment use under Penal Code section 290.46(j)(2)(E), constituted a violation of ICRAA and the public policies incorporated therein. The inclusion of legally prohibited information in an investigative consumer report prepared for employment purposes, and its use in employment decision-making, violates the spirit and purpose of ICRAA.

47. On information and belief, UPS failed to comply with one or more of the following requirements of the Investigative Consumer Reporting Agencies Act: (a) the requirement under Civil Code section 1786.16 to provide Plaintiff with a clear and conspicuous written disclosure that an investigative consumer report would be obtained, and to obtain Plaintiff's written consent; (b) the requirement to provide Plaintiff with a complete copy of all investigative consumer reports obtained, including any compliance materials, concurrent with or prior to the adverse action; and/or (c) other requirements of ICRAA governing the procurement and use of investigative consumer reports in employment decisions.

48. As a direct and proximate result of UPS's violations of ICRAA, Plaintiff suffered actual damages, including loss of the employment opportunity, lost wages, and emotional distress. Pursuant to Civil Code section 1786.50, Plaintiff is entitled to actual damages, and, for willful noncompliance, punitive damages not to exceed $5,000 per violation, plus attorney fees and costs.

FOURTH CAUSE OF ACTION

Invasion of Privacy

(Cal. Const., Art. I, § 1)

(Against All Defendants)

49. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

50. The California Constitution, Article I, Section 1, guarantees every person an inalienable right to privacy. The Legislature has recognized a legally protected privacy interest in sex offender registry information by strictly limiting its authorized use under Penal Code section 290.46(j) to the singular purpose of protecting persons at risk, and by prohibiting all other uses—including use in employment decisions.

51. On information and belief, UPS accessed, reviewed, and used information from California's sex offender registry pertaining to Plaintiff for the unauthorized and prohibited purpose of making an employment decision, in violation of Penal Code section 290.46(j)(2)(E). This unauthorized access and use constituted a serious invasion of Plaintiff's legally protected privacy interest.

52. UPS's invasion of Plaintiff's privacy was not justified by any legitimate, competing interest of sufficient weight to override the statutory and constitutional privacy protections. The position at issue—in general delivery and logistics operations—did not implicate any specific risk to any identified vulnerable person. The invasion was not authorized by law and could not be consented to by UPS's unilateral act.

53. As a direct and proximate result of UPS's invasion of Plaintiff's privacy, Plaintiff suffered humiliation, embarrassment, emotional distress, and other damages in an amount to be proven at trial.

FIFTH CAUSE OF ACTION

Negligence Per Se

(Against All Defendants)

54. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

55. California Penal Code section 290.46(j)(2)(E) is a statute enacted for the protection of a specific class of persons—registrants on the Megan's Law sex offender registry—against the specific harm of having their registry information used to deprive them of employment opportunities. Plaintiff is a member of the class of persons the statute was designed to protect, and the harm Plaintiff suffered—denial of employment, lost wages, and emotional distress—is precisely the type of harm the statute was enacted to prevent.

56. On information and belief, UPS violated Penal Code section 290.46(j)(2)(E) by accessing and using Plaintiff's sex offender registry information in making its decision to deny Plaintiff employment on or about July 31, 2024.

57. Pursuant to Evidence Code section 669, UPS's violation of Penal Code section 290.46(j)(2)(E) constitutes negligence per se. UPS's negligence was a proximate cause of Plaintiff's damages.

58. As a direct and proximate result of UPS's negligence per se, Plaintiff has suffered damages in an amount to be proven at trial, including lost wages, lost employment benefits, and emotional distress.

SIXTH CAUSE OF ACTION

Unlawful Business Practices

(Bus. & Prof. Code § 17200 et seq.)

(Against All Defendants)

59. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

60. California Business and Professions Code section 17200 prohibits 'any unlawful, unfair or fraudulent business act or practice.' Each prong is independently actionable.

61. UPS's conduct as alleged herein constitutes an 'unlawful' business practice because it violates California Penal Code section 290.46(j)(2)(E), a statute prohibiting the use of sex offender registry information in employment decisions. An employer's act that violates a statute is per se unlawful under Business and Professions Code section 17200.

62. UPS's conduct also constitutes an 'unfair' business practice because it harms employment applicants—including Plaintiff—and the public interest in the enforcement of legislative prohibitions, without any justification that outweighs those harms. The Legislature's policy judgment that registry information must not be used in employment decisions reflects a considered determination that such use causes harm disproportionate to any benefit.

63. As a direct and proximate result of UPS's unlawful and unfair business practices, Plaintiff has suffered loss of money and property, including lost wages and employment benefits, constituting injury in fact and loss of money or property causally connected to UPS's unlawful conduct, within the meaning of Business and Professions Code section 17204.

64. Plaintiff is entitled to restitution of lost wages and benefits, injunctive relief

prohibiting UPS from continuing to use sex offender registry information in employment decisions in California, and all other equitable relief authorized by Business and Professions Code section 17203, together with costs and attorney fees as authorized by applicable law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI prays for judgment against Defendant UNITED PARCEL SERVICE, INC. and Does 1 through 10, inclusive, as follows:

1. For actual damages, including lost wages, lost employment benefits, and compensation for emotional distress, humiliation, and mental anguish, according to proof at trial;

2. For the civil penalty authorized by Penal Code section 290.46(j)(4)(A)—the greater of Plaintiff's actual damages or twenty-five thousand dollars ($25,000)—for each unlawful use of Plaintiff's sex offender registry information for employment purposes;

3. For attorney fees pursuant to Penal Code section 290.46(j)(4)(A);

4. For general and special damages on all causes of action, according to proof at trial;

5. For punitive damages pursuant to Civil Code section 3294 based on Defendant's willful, malicious, and oppressive conduct in conscious disregard of Plaintiff's rights;

6. For actual damages, punitive damages, and attorney fees pursuant to Civil Code section 1786.50 for violations of the Investigative Consumer Reporting Agencies Act;

7. For restitution and injunctive relief pursuant to Business and Professions Code section

17203, including an order enjoining Defendant from using sex offender registry information in employment decisions in California;

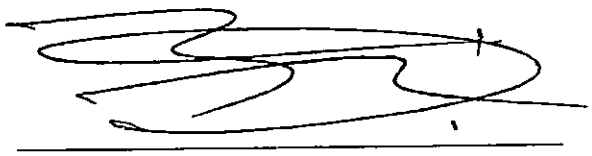
8. For costs of suit incurred herein; and

9. For such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff BRENDAN NGEHSI NEWANFORBI hereby demands a trial by jury on all causes of action and all issues triable by jury in the above-entitled action.

Dated: July 15, 2026



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint for Damages and know its contents. The matters stated therein are true of my own personal knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 15, 2026,

at Stockton, California.



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

Brendan Ngehsi Newanforbi

(b) County of Residence of First Listed Plaintiff Stockton, CA
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys *(Firm Name, Address, and Telephone Number)*

Pro Per

DEFENDANTS

United Parcel Service, Inc., et al.

County of Residence of First Listed Defendant DeKalb (GA)
(IN U.S. PLAINTIFF CASES ONLY)
NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

Martenson, Hasbrouck & Simon LLP
Vanessa Mott and Alyssa Daskas; 600 Anton Boulevard, Suite 1250, Costa Mesa, CA 92626; (279) 895-6501

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☐ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ☒ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*

(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☒ 1	☐ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☐ 4
Citizen of Another State	☐ 2	☐ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☒ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury - Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury - Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC 158
- ☐ 423 Withdrawal 28 USC 157

INTELLECTUAL PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent - Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS—Third Party 26 USC 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced and Corrupt Organizations
- ☐ 480 Consumer Credit (15 USC 1681 or 1692)
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

CIVIL RIGHTS
- ☐ 440 Other Civil Rights
- ☐ 441 Voting
- ☒ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities - Employment
- ☐ 446 Amer. w/Disabilities - Other
- ☐ 448 Education

PRISONER PETITIONS

Habeas Corpus:
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

Other:
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee - Conditions of Confinement

V. ORIGIN *(Place an "X" in One Box Only)*

- ☐ 1 Original Proceeding
- ☒ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District *(specify)*
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
This case involves employment related causes of action brought under California law. This Court has jurisdiction over this case pursuant to § 1332(a)

Brief description of cause:
Violation of Cal. Penal Code Section 290.46; Failure to hire; invasion of privacy; negligence; unlawful business practices

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $

CHECK YES only if demanded in complaint:
JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions): JUDGE _____ DOCKET NUMBER _____

DATE
08/20/2026

SIGNATURE OF ATTORNEY OF RECORD
/s/ Vanessa W. Mott

FOR OFFICE USE ONLY

RECEIPT # AMOUNT APPLYING IFP JUDGE MAG. JUDGE

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

I.(a) Plaintiffs-Defendants. Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

(b) County of Residence. For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)

(c) Attorneys. Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".

II. Jurisdiction. The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below**; NOTE: federal question actions take precedence over diversity cases.**)

III. Residence (citizenship) of Principal Parties. This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

IV. Nature of Suit. Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: Nature of Suit Code Descriptions.

V. Origin. Place an "X" in one of the seven boxes.
Original Proceedings. (1) Cases which originate in the United States district courts.
Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket.
PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7. Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.

VI. Cause of Action. Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service.

VII. Requested in Complaint. Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

VIII. Related Cases. This section of the JS 44 is used to reference related cases, if any. If there are related cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.

VANESSA W. MOTT (SBN 184606)
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adaskas@martensonlaw.com
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Costa Mesa, CA 92626
Telephone: (279) 895-6501

Attorneys for Defendant United Parcel Service, Inc.

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive, Defendants.	Case No.: **DECLARATION OF ASHLEY FELSING IN SUPPORT OF DEFENDANT'S NOTICE OF REMOVAL OF CIVIL ACTION TO FEDERAL COURT** Action Filed: July 15, 2026 in the Superior Court of the State of California for the County of San Joaquin, Case No. STK-CV-UWT-2026-0009113

TO THE HONORABLE COURT AND THE PLAINTIFF:

I, Ashley Felsing, declare as follows:

1. I am a HRBP Director for United Parcel Service, Inc. I have been employed with United Parcel Service, Inc. and worked for the UPS Human Resources Department for approximately nine (9) years. The facts contained in this declaration come from my personal knowledge, and I am competent to testify their accuracy.

2. Because I have worked for United Parcel Service, Inc. for over nine (9) years, I am familiar with the business operations of United Parcel Service, Inc.

3. I know that UPS is incorporated in Ohio. I have verified this fact by reviewing UPS's corporate records.

/ / /

4. Further, I know that UPS's principal place of business is in Georgia. The vast majority of UPS's high-level officers direct, control, and coordinate United Parcel Service, Inc.'s operations and activities from UPS's corporate headquarters in Atlanta, Georgia.

5. I have reviewed Plaintiff's application for employment. The position Plaintiff applied for would have paid $21.00 per hour, and he was applying to be a part-time employee.

6. Further, Plaintiff consistently indicated he is a California citizen in his UPS application. Plaintiff's job application for employment to UPS lists his residence at the time of the July 2024 application as an address in Stockton, California 95204. A true and correct copy of Plaintiff's job application for employment to UPS is attached hereto as **Exhibit 1**.

7. I have personal knowledge of these facts because I reviewed Plaintiff's application records, which are kept in the ordinary course of business by UPS.

I declare under penalty of perjury consistent with the United States of America and the State of California that statements in this declaration are true and correct and that this declaration was executed on August 18, 2026, at Fremont, California.

ASHLEY FELSING

Exhibit 1

Brendan Ngwambi
bnn.cdla@gmail.com
+1209-896-5857

US - LATHROP HUB (CALAH) - 75456-Loader/Unloader - Hub - H345 - E&L - Twilight Monday-Friday 15:00-23:30 - External (current)

Qualification Questions (Data) - *Completed 07/17/2024 06:46PM*

Instructions

UPS is an equal opportunity employer. UPS does not discriminate on the basis of race, color, religion, sex, national origin, veteran, disability, age, sexual orientation, gender identity, or any other characteristic protected by law.

Do you have reliable transportation?

true

Can you perform these essential functions with or without reasonable accommodations?

Yes

Are you a U.S. citizen or otherwise authorized to work in the United States?

Yes

Are you at least 18 years old?

Yes

Disqualifying Rule (Rule) - *Completed 07/17/2024 06:46PM*

General Information + Standard (Data) - *Completed 07/17/2024 06:47PM*

Do you or have you ever had any relative(s) employed by UPS or any UPS subsidiary?

No

What is your relative's name?

No Answer Provided

What is your relative's location?

No Answer Provided

Have you ever been employed by UPS or any UPS subsidiary?

No

Have you ever been assigned to work at UPS or any UPS subsidiary through a temporary agency?

No

What is your current address?

1455 Cat Tail Drive
Stockton, California 95204
United States

Virtual Tour (Data) - *Completed 07/17/2024 06:47PM*

Instructions

Please review the video and select your acknowledgement.

Please confirm you've watched the virtual tour

Confirmed

Please designate your selection:

Yes, I want to continue my application

Are you sure you want to discontinue? This will terminate your application

No Answer Provided

Virtual Tour Rule (Rule) - *Completed 07/17/2024 06:47PM*

Arbitration Agreement (Data) - *Completed 07/17/2024 06:47PM*

Instructions

ARBITRATION AGREEMENT / LIMITATION OF RIGHTS

1. How This Agreement Applies. This Arbitration Agreement / Limitation of Rights ("Agreement") is a contract governed by the Federal Arbitration Act ("FAA"), 9 U.S.C. § 1 et seq., and evidences a transaction involving commerce. This Agreement is between United Parcel Service, Inc. or one of its affiliates, subsidiaries, or parent companies (the "Company") and Employee (sometimes also referred to as "you" or "your"). This Agreement is intended to be as broad as legally permissible, and, except as set forth in Section 2 of this Agreement below, it applies to all claims or controversies, past, present, or future, that otherwise would be resolved in a court of law or before a forum other than arbitration related in any way to your employment, including, without limitation, disputes arising out of or related to Employee's application and selection for employment, employment or relationship with the Company, and/or the termination of employment with the Company. Except as provided in Section 2 of this Agreement, this Agreement applies to any dispute, past, present, or future, that the Company may have against you or that you may have related to your application for employment, employment and/or termination of your employment against: (1) Company; (2) its officers, directors, principals, shareholders, members, owners, employees, or agents; (3) Company's benefit plans or the plan's sponsors, fiduciaries,

administrators, affiliates, or agents; and (4) all successors and assigns of any of them. Each and all of the entities or individuals listed in (1) through (4) of the preceding sentence can enforce this Agreement against you and you can enforce this Agreement against each of those entities or individuals, and in the event of such enforcement, the term "Company" shall include such entity or individual for purposes of enforcement of this Agreement. **All disputes covered by this Agreement will be decided by a single arbitrator through final and binding arbitration and not by way of court or jury trial.**

Except as set forth in Section 2 below, this Agreement applies to disputes arising out of or relating to the application for employment, background checks, privacy, employment relationship, or the termination of that relationship (including post-employment defamation or retaliation), trade secrets, seating, unfair competition, compensation, classification, minimum wage, expense reimbursement, overtime, meal breaks and rest periods, retaliation, discrimination, or harassment (with the exception noted below in Section 2(iii) for sexual harassment and sexual assault claims covered under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act), and claims or disputes which could be asserted or arise under the Fair Credit Reporting Act, Defend Trade Secrets Act, Civil Rights Act of 1964, 42 U.S.C. §1981, Rehabilitation Act, Civil Rights Acts of 1866 and 1871, Civil Rights Act of 1991, 8 U.S.C. § 1324b (unfair immigration related practices), 41 U.S.C. § 4712, Pregnancy Discrimination Act, Equal Pay Act, Americans With Disabilities Act, Age Discrimination in Employment Act, Older Workers Benefit Protection Act, Occupational Safety and Health Act, Family and Medical Leave Act, Fair Labor Standards Act, Employee Retirement Income Security Act (except for claims for employee benefits under any benefit plan sponsored by the Company and covered by the Employee Retirement Income Security Act of 1974 or funded by insurance), Affordable Care Act, Genetic Information Non-Discrimination Act, Uniformed Services Employment and Reemployment Rights Act, Worker Adjustment and Retraining Notification Act, Consolidated Omnibus Budget Reconciliation Act of 1985, the False Claims Act, and state statutes or regulations, if any, addressing the same or similar subject matters, and any other employment-related claims for violation of any federal, state or other governmental law, statute, regulation, or ordinance.

Additionally, the Arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any dispute relating to the validity, applicability, enforceability, unconscionability, or waiver of this Agreement, including, but not limited to any claim that all or any part of this Agreement is void or voidable. However, the preceding sentence does not apply to any claims under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act, and it will not apply to the Class Action Waiver, Collective Action Waiver, and/or PAGA Individual Action Requirement. Regardless of anything else in this Agreement and/or any rules or procedures that might otherwise apply because of this Agreement (including without limitation the American Arbitration Association Rules discussed below) or any amendments and/or modifications to those rules, any disputes concerning the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act and/or any claim that all or any portion of the Class Action Waiver, Collective Action Waiver, and/or PAGA Individual Action Requirement is invalid, unenforceable, unconscionable, void or voidable, will be determined only by a court of competent jurisdiction and not by an arbitrator.

2. Limitations on How This Agreement Applies. The following claims are not covered under this Agreement: (i) Workers' compensation benefits, state disability insurance benefits or unemployment insurance benefits; however, the Agreement applies to discrimination or retaliation claims based upon seeking such benefits; (ii) disputes that an applicable federal statute expressly states cannot be arbitrated or subject to a pre-dispute arbitration agreement; (iii) disputes that may not be subject to pre-dispute arbitration agreement under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (at Employee's election); and (iv) claims that are not subject to predispute arbitration agreement as provided by the Sarbanes Oxley Act, 18 U.S.C. § 1514. If any arbitrable claims are combined with claims not covered above, those arbitrable claims will proceed in arbitration under the terms of this Agreement before the non-arbitrable claims.

This Agreement is not intended to supplant or contravene the resolution through a grievance proceedings of any dispute or claim relating to employment which is subject to specified dispute-resolution procedures contained in any applicable collective bargaining agreement.

Nothing in this Agreement prevents you from making a report to or filing a claim or charge with a government agency, including without limitation the Equal Employment Opportunity Commission, U.S. Department of Labor, National Labor Relations Board, Securities and Exchange Commission, Occupational Safety and Health Administration, or law enforcement authorities. Nothing in this Agreement prevents the investigation by a government agency of any report, claim or charge otherwise covered by this Agreement. This Agreement also does not prevent federal administrative agencies from adjudicating claims and awarding remedies based on those claims, even if the claims would otherwise be covered by this Agreement. Nothing in this Agreement prevents or excuses a party from satisfying any conditions precedent and/or exhausting administrative remedies under applicable law before bringing a claim in arbitration. The Company will not retaliate against you for filing a claim with an administrative agency or for exercising rights (individually or in concert with others) under the National Labor Relations Act. This Agreement also does not prevent or prohibit you from reporting, communicating about, or disclosing claims for discrimination, harassment, retaliation, or sexual abuse.

You or the Company may apply to a court of competent jurisdiction for temporary or preliminary injunctive relief in connection with an arbitrable controversy in accordance with applicable law, and any such application shall not be deemed incompatible with or waiver of this Agreement. The court to which the application is made is authorized to consider the merits of the arbitrable controversy to the extent it deems necessary in making its ruling, but only to the extent permitted by applicable law. All determinations of final relief, however, will be decided in arbitration.

3. Arbitration Procedures and Selection. Unless you and the Company mutually agree otherwise, the Arbitrator shall be an attorney experienced in arbitrating employment law disputes and licensed to practice law in the state in which the arbitration is convened or a retired federal or state judicial officer from any jurisdiction. The location of the arbitration proceeding shall be in the county and in the same state where you last worked for the Company, unless each party to the arbitration agrees in writing otherwise.

You and the Company will mutually select the neutral Arbitrator, who shall make disclosures to both parties. If the parties cannot mutually select an arbitrator through good faith and informal communications, the parties will each submit a list of 5 proposed arbitrators to the other side for consideration. If the parties still cannot mutually agree to an Arbitrator, the arbitration will be held under the auspices of the American Arbitration Association ("AAA"), and except as provided in this Agreement, will be under the then-current AAA Employment

Arbitration Rules ("AAA Rules") (the AAA Rules are available through Human Resources or via the internet at www.adr.org/employment or by using a service such as www.google.com to search for "AAA Employment Arbitration Rules"); provided however, that if there is a conflict between the AAA Rules and this Agreement, this Agreement shall govern.

If the parties cannot mutually agree to an Arbitrator, the Arbitrator will be selected as follows: The AAA will give each party a list of nine (9) arbitrators (who are subject to the qualifications listed above) drawn from its panel of arbitrators. Each party will have ten (10) calendar days to strike all names on the list it deems unacceptable. If only one common name remains on the lists of all parties, that individual will be designated as the Arbitrator. If more than one common name remains on the lists of all parties, the parties will strike names alternately from the list of common names by telephone conference administered by AAA, with the party to strike first to be determined by a coin toss conducted by AAA, until only one remains. If no common name remains on the lists of all parties, the AAA will furnish an additional list of nine (9) arbitrators from which the parties will strike alternately by telephone conference administered by AAA, with the party to strike first to be determined by a coin toss conducted by AAA, until only one name remains. That person will be designated as the Arbitrator. If the individual selected cannot serve, AAA will issue another list of nine (9) arbitrators and repeat the alternate striking selection process. If for any reason the AAA will not administer the arbitration, or is unwilling to administer the arbitration consistent with this Agreement, either party may apply to a court of competent jurisdiction with authority over the location where the arbitration will be conducted for appointment of a neutral Arbitrator, who shall act under this Agreement with the same force and effect as if he or she had been specifically named herein.

The Arbitrator may award any remedy to which a party is entitled under applicable law, but remedies will be limited to those that would be available to a party in his or her individual capacity for the claims presented to the Arbitrator, and no remedies that otherwise would be available to an individual under applicable law will be forfeited. The Arbitrator shall apply the substantive federal, state, or local law applicable to the claims asserted. Either party may file dispositive motions, including without limitation a motion to dismiss and/or a motion for summary judgment, and the Arbitrator will apply the standards governing such motions under the Federal Rules of Civil Procedure.

4. Starting the Arbitration. The party bringing the claim must demand arbitration in writing and deliver the written demand by hand or first-class mail to the other party within the applicable statute of limitations period. The demand for arbitration shall include identification of the parties, a statement of the legal and factual basis of the claim(s), and a specification of the remedy sought. Any demand for arbitration made to the Company shall be provided to the UPS Service of Process Manager, Building 3, Floor 4, 55 Glenlake Parkway, NE, Atlanta, GA 30328 or to the Company's designated agent for service of process in the state of

your primary employment with the Company, you will be given notice of any demand for arbitration by the Company at the last home address you provided to the Company, which you are encouraged and required to keep current. The demand for arbitration must be signed by the party making the demand for arbitration (by you personally or by an authorized representative of the Company). The Arbitrator shall resolve all disputes regarding the timeliness or propriety of the demand for arbitration.

5. Class and Collective Action Waivers. The Company and you agree to bring any claim on an individual basis and not on a class and/or collective action basis.

Accordingly,

(a) There will be no right or authority for any dispute to be brought, heard, or arbitrated as a class action and the Arbitrator will have no authority to hear or preside over any such claim ("Class Action Waiver"). The Class Action Waiver shall be severable from this Agreement if there is a final judicial determination that the Class Action Waiver is invalid, unenforceable, unconscionable, void or

voidable. In such instances, the class action must be litigated in a civil court of competent jurisdiction—not in arbitration.

(b) There will be no right or authority for any dispute to be brought, heard, or arbitrated as a collective action and the Arbitrator will have no authority to hear or preside over any such claim ("Collective Action Waiver"). The Collective Action Waiver shall be severable from this Agreement if there is a final judicial determination that the Collective Action Waiver is invalid, unenforceable, unconscionable, void or voidable. In such instances, the collective action must be litigated in a civil court of competent jurisdiction—not in arbitration.

6. Private Attorneys General Act ("PAGA") Individual Action Requirement: You and the Company agree to arbitrate PAGA claims on an individual basis only.

Therefore, any claim by you under PAGA to recover for unpaid wages, civil penalties, or other individual relief must be arbitrated under this Agreement. You and the Company also agree and stipulate that any non-individual PAGA claims shall be stayed in the trial court, pending a final determination and written decision by the Arbitrator in arbitration with respect to your alleged status as an "aggrieved employee," and you and the Company agree that the Arbitrator, and not the court, will make this determination. The Arbitrator is without authority to preside over any PAGA claim by you on behalf of any other person or joined by or consolidated with another person's or entity's PAGA claim. This PAGA Individual Action Requirement clause will be severable from this Agreement if there is a final judicial determination that it is invalid, unenforceable, unconscionable, void or voidable. In such case, the PAGA action must be litigated in a civil court of competent jurisdiction—not in arbitration—but the portion of the PAGA Individual Action Requirement that is enforceable shall be enforced in arbitration.

7. Discovery and Subpoenas. You and the Company are entitled to adequate civil discovery sufficient to explore the factual basis of the claims and defenses asserted. Accordingly, each party may take the deposition of 3 individual fact witnesses and any expert witness designated by another party. Each party also may propound requests for production of documents and 10 interrogatory requests to the other party. And, each party may also subpoena witnesses and documents for discovery or the arbitration hearing, including testimony and documents relevant to the case from third parties, in accordance with any applicable state or federal law. Additional discovery may be conducted by mutual stipulation, and the Arbitrator will have exclusive authority to entertain

requests for additional discovery, and to grant or deny such requests, based on

the arbitrator's determination whether additional discovery is warranted by the

circumstances of a particular case. The Arbitrator will have exclusive authority to resolve discovery disputes.

8. Paying for the Arbitration. You and the Company shall follow the mutually chosen Arbitrator's or AAA Rules (if the parties cannot mutually select an arbitrator) applicable to initial filing fees, but in no event will you be responsible for any portion of those fees in excess of the filing or initial appearance fees applicable to court actions in the jurisdiction where the arbitration will be conducted. After you pay your portion of any initial filing fee, the Company shall pay any remaining portion of the initial fee and also will pay all costs and expenses unique to arbitration, including without limitation the Arbitrator's fees. Each party will pay for its own costs and attorneys' fees, if any, but if any party prevails on a claim which affords the prevailing party attorneys' fees, the Arbitrator is authorized to award reasonable fees to the prevailing party as provided by law. The Arbitrator will resolve any disputes regarding costs/fees associated with arbitration.

9. The Arbitration Hearing and Award. The Arbitrator will issue a decision or award in writing, stating the essential findings of fact and conclusions of law. A court of competent jurisdiction shall have the authority to enter a judgment upon the award made pursuant to the arbitration.

10. Non-Retaliation. It is against Company policy for any Employee to be subject to retaliation if he or she exercises his or her right to assert claims under this Agreement. If you believe that you have been retaliated against by anyone at the Company, you should immediately report this to the Company's UPS Ethics Hotline at 1-800-220-4126.

11. Enforcement of This Agreement. This Agreement is the full and complete agreement about arbitration of disputes covered by this Agreement. Any contractual disclaimers the Company has in any handbooks, other agreements, or policies do not apply to this Agreement. If the FAA does not apply to a particular dispute or to one or both parties, the parties agree that the Ohio Arbitration Act ("OAA"), Ohio R.C. Ch. § 2711.01 et seq., will apply and they acknowledge that United Parcel Service, Inc. is an Ohio corporation. If neither the FAA or OAA apply, the parties stipulate and agree the arbitration law of the jurisdiction where the arbitration will take place will apply. This Agreement will survive the termination of your employment and the expiration of any benefit, and it will continue to apply upon your transfer to any parent, subsidiary or affiliate of the Company or re-employment by the Company if your employment is ended but later renewed until the last possible statute of limitation for any claim which is covered by this Agreement has lapsed, taking into account any applicable tolling. Subject to Sections 5 and 6 above (which include their own severability provisions), in the event any portion of this Agreement is deemed unenforceable, the remainder of this Agreement will be enforceable. However, under no circumstances may the Arbitrator hear or preside over any class, collective, or other claim joined by or consolidated with another person's or entity's claim, unless all parties agree in writing. This Agreement does not alter the "at-will" status of your employment.

12. Seasonal Hire. If the Employee is hired for a position denoted as "seasonal," and/or the Employee is hired during a "peak" seasonal period as defined in any applicable collective bargaining agreement, you acknowledge that your employment is temporary, that you have no guarantee of full-time or part-time employment with UPS, and that your employment may be terminated at the end of the seasonal period (for "peak" seasonal hires, on or before the last day of January in the year following your hire). You further acknowledge that, as a seasonal hire, you are an at-will employee, and, as such, your employment may be discontinued at any time.

13. Limitation of Rights/ Contractual Statute of Limitations. To the extent the law allows the Employee to bring claims against the Company or the Company to bring claims against the Employee, whether by arbitration or in a court of law but excluding the grievance procedure under any applicable collective bargaining agreement, you and the Company agree to bring any such claim by the earlier of the time provided by law or the time allotted by the provision below that applies to the claim:

(a) if the claim arises under California law and requires the filing of a charge with an administrative agency before an arbitration or court action may be instituted, six (6) months from issuance of the right to sue by the administrative agency;

(b) if the claim does not arise under California law but requires the filing of a charge with an administrative agency before an arbitration or court action may be instituted, twelve (12) months from the event forming the basis of the claim;

(c) for all other claims, six (6) months from the event forming the basis of the claim.

You and the Company acknowledge that you and the Company are agreeing to bring any claim within a shorter time than may otherwise be provided by law. Section 13 does not apply to claims arising under the laws of Florida or South Carolina or over which the Oregon Bureau of Labor & Industries has enforcement authority, and shall be deemed inoperative with respect to any such claim. In the event this provision is deemed unenforceable, the legally applicable statutes of limitations will apply.

Document version dated 11.3.2025

Stage Body

BY CLICKING THE ACKNOWLEDGMENT BOX AND TYPING YOUR NAME, YOU ARE PROVIDING YOUR "ELECTRONIC SIGNATURE" AND YOU ARE ACKNOWLEDGING THAT YOU HAVE READ, REVIEWED, UNDERSTOOD, AND AGREED TO THIS AGREEMENT. YOU ALSO AUTHORIZE THE USE OF AN ELECTRONIC SIGNATURE AS YOUR ACCEPTANCE TO THIS AGREEMENT, AND UNDERSTAND AND ACKNOWLEDGE THAT YOUR ELECTRONIC SIGNATURE is intended to show YOUR acceptance and IS AS VALID AND HAS THE SAME LEGAL EFFECT AS AN INK SIGNATURE.

Yes

Please type your legal first name and last name below.

Brendan Ngwanforbi

EEO Questionnaire (Voluntary) Gender + Race (Data) - *Completed 07/17/2024 06:47PM*

Instructions

As an Equal Opportunity/Affirmative Action employer, UPS is required to keep certain records concerning employees and applicants for employment. This information is strictly confidential except to the extent that disclosure is required by applicable policy or law. It will be used for record-keeping purposes only. You are invited to identify your gender and race/ethnicity by using this form. Providing this information is strictly voluntary and neither providing it nor declining the invitation to provide it will adversely affect your application for employment in any way.

Equal opportunity is the law: link

No Questions Available For This Stage

EEO Questionnaire (Voluntary) Veteran (Data) - *Completed 07/17/2024 06:48PM*

Instructions

This employer is a Government contractor subject to the Vietnam Era Veterans' Readjustment Assistance Act of 1974, as amended by the Jobs for Veterans Act of 2002, 38 U.S.C.4212 (VEVRAA), which requires Government contractors to take affirmative action to employ and advance in employment: (1) disabled veterans; (2) recently separated veterans; (3) active duty wartime or campaign badge veterans; and (4) Armed Forces service medal veterans. These classifications are defined as follows:

A "disabled veteran" is one of the following:

- A veteran of the U.S. military, ground, naval or air service who ¡s entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs; or
- A person who was discharged or released from active duty because of a service-connected disability.
- A "recently separated veteran" means any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S.military, ground, naval, or air service.
- An "active duty wartime or campaign badge veteran" means a veteran who served on active duty in the U.S. military, ground, naval or air service during a war, or in a campaign or expedition for which a campaign badge has been authorized under the laws administered by the Department of Defense.

"Period of War" is defined for these purposes by the Department of Labor as:

- June 27, 1950 – January 31, 1955 (Korean Conflict);
- February 28, 1961 – May 7, 1975 (for veterans serving in the Republic of Vietnam);
- August 5, 1964 – May 7, 1975 (for all other veterans who served during the Vietnam conflict); and
- August 2, 1990 – present (Gulf War)
- Information on the wars, campaigns, or expeditions for which a campaign badge has been authorized may be found on the following website, https://www.opm.gov/policy-data-oversight/veterans-services/vet-guide/.

An "Armed forces service medal veteran" means a veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.

Protected veterans may have additional rights under USERRA - the Uniformed Services Employment and Reemployment Rights Act. In particular, if you were absent from employment in order to perform service in the uniformed service, you may be entitled to be reemployed by your employer in the position you would have obtained with reasonable certainty if not for the absence due to service. For more information, call the U.S. Department of Labor's Veterans Employment and Training Service (VETS), toll-free, at 1-866-4-USA-DOL.

As a Government contractor subject to VEVRAA, we are required to submit a report to the United States Department of Labor each year identifying the number of our employees belonging to a "protected veteran" category. If you believe you belong to any of the categories of protected veterans listed above, please indicate by checking the appropriate box below.

Submission of this information is voluntary and refusal to provide it will not subject you to any adverse treatment. The information provided will be used only in ways that are not inconsistent with the Vietnam Era Veterans' Readjustment Assistance Act of 1974, as amended.

The information you submit will be kept confidential, except that (i) supervisors and managers may be informed regarding restrictions on the work or duties of disabled veterans, and regarding necessary accommodations; (ii) first aid and safety personnel may be informed, when and to the extent appropriate, if you have a condition that might require emergency treatment; and (iii) Government officials engaged in enforcing laws administered by the Office of Federal Contract Compliance Programs, or enforcing the Americans with Disabilities Act, may be informed.

UPS maintains an affirmative action program designed to promote the employment and advancement in employment of veterans; including the protected veterans listed above consistent with the requirement of VEVRAA.

No Questions Available For This Stage

EEO Questionnaire (Voluntary) Disability (Data) - *Completed 07/17/2024 06:48PM*

Instructions

Form CC-305

Page 1 of 1OMB Control Number 1250-0005

Expires 05/31/2023

Why are you being asked to complete this form?

We are a federal contractor or subcontractor required by law to provide equal employment opportunity to qualified people with disabilities. We are also required to measure our progress toward having at least 7% of our workforce be individuals with disabilities. To do this, we must ask applicants and employees if they have a disability or have ever had a disability. Because a person may become disabled at any time, we ask all of our employees to update their information at least every five years.

Identifying yourself as an individual with a disability is voluntary, and we hope that you will choose to do so. Your answer will be maintained confidentially and not be seen by selecting officials or anyone else involved in making personnel decisions. Completing the form will not negatively impact you in any way, regardless of whether you have self-identified in the past. For more information about this form or the equal employment obligations of federal contractors under Section 503 of the Rehabilitation Act, visit the U.S. Department of Labor's Office of Federal Contract Compliance Programs (OFCCP) website at www.dol.gov/ofccp.

How do you know if you have a disability?

You are considered to have a disability if you have a physical or mental impairment or medical condition that substantially limits a major life activity, or if you have a history or record of such an impairment or medical condition. Disabilities include, but are not limited to:

Autism
Autoimmune disorder, for example, lupus, fibromyalgia, rheumatoid arthritis, or HIV/AIDS
Blind or low vision
Cancer
Cardiovascular or heart disease
Celiac disease
Cerebral palsy
Deaf or hard of hearing
Depression or anxiety
Diabetes
Epilepsy
Gastrointestinal disorders, for example, Crohn's Disease, or irritable bowel syndrome
Intellectual disability
Missing limbs or partially missing limbs
Nervous system condition for example, migraine headaches, Parkinson's disease, or Multiple sclerosis (MS)
Psychiatric condition, for example, bipolar disorder, schizophrenia, PTSD, or major depression

No Questions Available For This Stage

Application Agreement (Data) - *Completed 07/17/2024 06:48PM*

Instructions

I understand and acknowledge that nothing contained in this application, its supplement(s), or in any Company handbook, manual, rule, regulation, practice, or policy creates an employment contract, expressed or implied, between myself and the Company.

I further understand that, in the event that I am offered a position at the Company, my employment shall be at will, and as such, I acknowledge that my employment may be terminated at any time, either by me or the Company, with or without cause, and with or without notice. This paragraph shall be not applicable to me if and when my employment is governed by a collective bargaining agreement.

I authorize the Company to verify employment references in connection with my application for employment and to re-verify those references subsequently as the Company deems appropriate. I hereby release from all liability or damages those individuals, corporations, or organizations who provide such information to the Company. I understand that any such information provided shall become the exclusive property of the Company.

Upon my hire and in consideration of my employment, I agree to comply with all applicable policies, rules, regulations, and procedures of the Company. I understand that my failure to comply with those policies, rules, regulations or procedures may lead to disciplinary action against me, up to and including termination of my employment.

As a condition of employment, I consent to taking a Department of Transportation medical examination and such future examinations if required by federal law and/or by the Company. I understand any offer of employment is conditional upon my successful completion of such medical examinations.

UPS has established Uniform and Personal Appearance Guidelines, which apply to certain positions. UPS will review the Uniform and Personal Appearance Guidelines with me in more detail should I be offered a position in which the Uniform and Personal Appearance Guidelines apply. An applicant or employee may request an exception or change to, or an accommodation of, any condition of employment (including the UPS Uniform and Personal Appearance Guidelines) because of a sincerely held religious belief or practice.

This certifies that this application was completed by me or at my direction and that all entries on it and the information in it are true and complete to the best of my knowledge. I understand that any false or misleading statements, omissions, or failure on my part to fully answer any questions on this application may result in the rejection of my application for consideration of employment or my dismissal from employment, regardless of when such information is discovered.

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this Agreement and understand its contents.

I agree

EJF Review and Acknowledgement (Data) - *Completed 07/17/2024 06:49PM*

Instructions

I have read and reviewed the essential functions of this role:

Yes

Are you able to perform these Job functions?

I am able to perform the essential job functions

I may be able to perform the essential job functions with a disability related accommodation. I understand that medical documentation may be required to process this request and there is a maximum of 7 days to initiate this request otherwise the application process will terminate. I want to proceed with the request and complete the ADA form.

No Answer Provided

Are you able to perform these Job functions?

No Answer Provided

Accomodation Rule (Rule) - *Completed 07/17/2024 06:49PM*

Confirmation of Intent (Data) - *Completed 07/17/2024 06:49PM*

Stage Body

Now that you know more about being a [OPENING_NAME], please indicate below if you wish to pursue this position and continue with your application.

Position Title: [OPENING_NAME]

Selected Approximate Shift Hours: [SELECTED_SHIFT]

Employment Type: [OPENING_EMPLOYMENT_TYPE]

Pay Information: [OPENING_PAY_RANGE]

Please choose one of the follow options to continue:

I understand the job functions for role and I want to continue with my application. If hired, I commit to report for work daily and to be on time according to my work schedule

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FAQ Rule (Rule) - *Completed 07/17/2024 06:49PM*

FCRA Notice (Data) - *Completed 07/17/2024 06:49PM*

Instructions

DISCLOSURE OF INTENTION TO OBTAIN CONSUMER REPORT FOR EMPLOYMENT PURPOSES

This disclosure is being provided to you pursuant to the federal Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681 et seq. Under the FCRA, United Parcel Service, Inc. ("UPS") is required to make a clear and conspicuous written disclosure to you that UPS may obtain a criminal background report, employment history, driving record, education history, and/or other consumer reports* about you from a consumer reporting agency. These consumer reports may be used to evaluate your eligibility for hire or your continued employment with UPS, or for other employment purposes. These consumer reports may be obtained by UPS at any time after the receipt of your authorization to obtain the reports, and, if you are hired by UPS, throughout your employment with UPS, subject to applicable law.

* Under the FCRA, a "consumer report" is any written, oral, or other communication of any information by a consumer reporting agency bearing on an individual's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living which is used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the individual's eligibility for, among other things, employment.

AUTHORIZATION REGARDING INTENTION TO OBTAIN
CONSUMER REPORT FOR EMPLOYMENT PURPOSES

By signing below, you acknowledge and agree as follows:

- I voluntarily and fully authorize United Parcel Service, Inc. (“UPS”) to obtain consumer reports on me for employment purposes as set forth in the Disclosure of Intention to Obtain Consumer Report for Employment Purposes, which I received separately and signed to acknowledge my receipt and understanding;
- I voluntarily and fully authorize the release of all information necessary for UPS to obtain consumer reports on me for employment purposes as set forth in the Disclosure of Intention to Obtain Consumer Report for Employment Purposes, including but not limited to criminal records, employment records, driving records, and educational records;
- I agree that if I become employed by UPS, UPS is authorized by me, at any time during the course of my employment, to obtain subsequent criminal background reports, driving records, or other consumer reports about me so as to update, renew, extend or evaluate my continued employment, or to consider me for other employment positions, except where prohibited by applicable law;
- I understand and acknowledge that, if UPS obtains credit history information on me, it will be used to evaluate whether I would present an unacceptable risk of theft or other dishonest behavior in the job for which I am being considered; and
- I understand and acknowledge that UPS may be required to share the consumer reports it obtains about me, or the information contained therein, with appropriate third parties for employment-related purposes, and I expressly authorize UPS to make such disclosures.

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this agreement and understand its contents.

I agree

FCRA - State Group 1 Disclosure (CA, MN, NJ, OK) (Data) - *Completed 07/17/2024 06:49PM*

Instructions

ADDITIONAL DISCLOSURES REGARDING UPS’S INTENTION TO OBTAIN
A CONSUMER REPORT ABOUT YOU FOR EMPLOYMENT PURPOSES

If you live in or are applying for employment in any of the following states, please take note:

☐ CALIFORNIA: Because the position you are being considered for at United Parcel Services, Inc. ("UPS") will involve access to confidential financial and other business information and valuable property belonging to UPS's customers, a consumer report about you is necessary and important for UPS to review in order to evaluate whether you would present an unacceptable risk of theft or other dishonest behavior in the performance of your job. Accordingly, UPS intends to obtain a consumer report about you for employment purposes pursuant to section 1024.5(a)(7) of the California Labor Code. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

For information regarding your privacy, please see the following link.

http://www.fadv.com/privacy-policy.aspx

☐ MINNESOTA: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below. You also have the right, under

M.S.A. § 13C.02, subd. 3, to request additional information on the nature of the report by submitting a written request to First Advantage, the consumer reporting agency whose contact information is shown below, for a complete and accurate disclosure of the nature and scope of any consumer report UPS ordered about you. The consumer reporting agency must mail or deliver this disclosure to you within five days after its receipt of your request, or UPS's request made on your behalf, whichever date is later.

☐ NEW JERSEY: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

☐ OKLAHOMA: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

* * *

The consumer reporting agency that will prepare and provide the report to UPS is:

First Advantage

P.O. Box 105292

Atlanta, Georgia 30348

Phone: 1-800-845-6004

Fax: 678-694-2844

E-mail: consumer.documents@fadv.com

Web: www.fadv.com

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that i have carefully reviewed this agreement and understand its contents.

I agree

FCRA California Disclosure (Data) - *Completed 07/17/2024 06:49PM*

Instructions

ADDITIONAL DISCLOSURES FOR CALIFORNIA APPLICANTS

With your express authorization and consent, United Parcel Services, Inc. ("UPS") may obtain a report about you for employment purposes that is defined under the California Investigative Consumer Reporting Agencies Act, Cal. Civ. Code §§ 1786 to 1786.80, as an "investigative consumer report." The report will be prepared by:

First Advantage

P.O. Box 105292

Atlanta, Georgia 30348

Phone: 1-800-845-6004

Fax: 678-694-2844

E-mail: consumer.documents@fadv.com

Web: www.fadv.com

The report provided by First Advantage may include information on your character, general reputation, personal characteristics, and mode of living. Such information will be used to evaluate whether you would present an unacceptable risk of theft or other dishonest behavior in the job for which you are being considered.

Pursuant to section 1786.22 of the California Civil Code, you may view the file maintained on you by First Advantage during normal business hours. You may obtain a copy of the file, upon submitting proper identification and paying the costs of duplication services, by appearing at First Advantage's offices in person, during normal business hours and on reasonable notice, or by certified mail. You may also receive a summary of the file by telephone, upon submitting proper identification and a written request. First Advantage has trained personnel available to explain your file to you, including any coded information, and will provide a written explanation of any coded information contained in your file. If you appear in person, you may be accompanied by one other person, provided that person furnishes proper identification. "Proper identification" includes documents such as a valid driver's license, social security account number, military identification card, and credit cards. If you cannot identify yourself with such information, the consumer reporting agency may require additional information concerning your employment and personal or family history to verify your identity.

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this Agreement and understand it's contents.

I agree

Tentative Hired Date (Data) - *Completed 07/17/2024 06:49PM*

Stage Body

Please select your earliest availability from the options below.

As you continue your application and have successfully completed all required forms and documents, you will select your official start date. Your official start date may differ from the earliest availability date you select below.

What is the earliest date you could be available to start?

53398214-5e20-4517-ab90-7be2ef552392

Tentative Hired Date Rule (Rule) - *Completed 07/17/2024 06:49PM*

Integration BGC Consent (First Advantage 1-step) - *Completed 07/17/2024 06:52PM*

Rehire Checks Eligibility (Custom) - *Completed 07/17/2024 06:52PM*

Instructions

Please wait a moment you are moving forward in your process we will need to validate your rehire eligibility with UPS.

Rehire Check Rule (Rule) - *Completed 07/17/2024 06:52PM*

Confirmation of Pay (Data) - *Completed 07/17/2024 06:53PM*

Stage Body

Now that you know more about being a [OPENING_NAME], please indicate below if you wish to pursue this position and continue with your application.

Position Title: [OPENING_NAME]

Tentative Hired Date: [APPLICANT_DATA_TENTATIVE_HIRING_GOAL_START_DATE_TIME]

Selected Approximate Shift Hours: [SELECTED_SHIFT]

Employment Type: [OPENING_EMPLOYMENT_TYPE]

Pay Information: [APPLICANT_DATA_TENTATIVE_HIRING_GOAL_PAY_RATE]

Please choose one of the following options to continue:

I accept this pay

Confirmation of Pay Rule (Rule) - *Completed 07/17/2024 06:53PM*

UPS Policy Sign Off - CA (Multistage) - *Completed 07/17/2024 06:54PM*

Our Commitment to Integrity-deleted-1759439938 (Data) -

Instructions

UPS has a long tradition of transforming and adapting to the needs of our customers, but our commitment to integrity remains steadfast. We remain committed to a set of beliefs that guided our founders and their successors, and currently guides employees and representatives of UPS.

It is this commitment that will continue to move us forward.

More than 100 years ago, UPS Founder Jim Casey began building our company by asking retailers for their trust. They entrusted us with their business, and every day, UPS people honored that trust and maintained relationships with customers by acting with integrity. We have preserved this philosophy over the years, and it has become our guiding principle.

Today, UPS employees and representatives continue to uphold our strong brand and the legacy of integrity that Jim started.

This requires us to conduct business fairly, honestly, and ethically.

For our company to survive and remain successful, we must have a sound set of beliefs that serves as the foundation for our decisions and actions. We must remember that our success, reputation, and brand were developed over many years and can be damaged if we do not act responsibly with an uncompromising set of common beliefs.

A commitment to integrity is about creating a climate for continued success. It is about creating an environment where people can make good decisions. It is about doing the right thing in every business situation. By using good judgment and respecting others, UPS's commitment to integrity will endure.

UPS's reputation for ethical behavior has enabled us to attract and retain the best people and loyal customers; it has opened doors in new and emerging global markets and allowed us to transform our business to meet changing customer needs.

Compliance with our legal and ethical obligations is the responsibility of every UPS employee and representative, as is the responsibility to report potential violations of those obligations. Reporting may be accomplished directly through a discussion with a member of the management team or by using the UPS Help Line. Information about the UPS Help Line is available on UPSers.com.

No Questions Available For This Stage

Professional Conduct/Anti Harassment-deleted-1759439965 (Data) -

Instructions

We want UPS to be a safe place to work where everyone is treated with dignity and

respect. When you treat each other with respect, you are helping make UPS a great

place to work and one where we all are proud to be UPSers.

A few rules we expect everyone to live by:

· Keep your hands to yourself.

No touching people in an inappropriate way.

- Don't make sexual advances at work – ever.
- Don't make comments about or refer to anyone's gender, race, religion, sexual orientation or ethnicity in an offensive or insulting way. No matter our differences, being a UPSer should unite us.
- Don't send inappropriate text messages or social media posts to UPSers – ever.
- That includes language, symbols or images that could be offensive based on race, ethnicity, sexual identity, gender, religion or other factors.
- Don't display language, symbols or images on your personal belongings or on company property that could be considered offensive based on race,

ethnicity, sexual identity, gender or religion.

Help us make this the best place to work. If you experience discrimination, sexual or

racial misconduct, use our Open Door Policy to raise issues with your management team or a trusted leader in your function. You can also use the UPSEthicsHotline.com in the U.S., the Ethics Hotline at 1-800-220-4126.

Every report of misconduct will be investigated thoroughly and fairly – and we will not

allow retaliation against UPSers who report concerns.

Bottom line: Follow the golden rule – treat others as you expect to be treated.

We have a zero-tolerance policy. Don't follow the rules, you could lose your job.

No Questions Available For This Stage

Drug and Alcohol Agreement-deleted-1759439928 (Data) -

Instructions

At UPS we have a vital interest in the safety of our employees and the general public. By maintaining the highest standards for our employees we ensure the efficient and safe operations necessary to provide reliable services to our customers. It is well recognized that individuals who use illicit drugs or abuse alcohol are more likely to have workplace accidents, incur greater amounts of lost time, and perform their job requirements in a substandard manner.

There is an even greater concern at United Parcel Service because of the nature of our service. Therefore, it is our intent to continue to promote a safe and secure work environment free of illicit drugs and alcohol abuse or use.

We maintain a drug-free and alcohol-free workplace. We maintain an Employee Assistance Procedure to help our employees who may be suffering from substance abuse. Any employee may volunteer for this service. Our Employee Assistance Procedure assures that employees who develop drug or alcohol problems will have access to medical evaluation and appropriate community-based treatment.

We prohibit the illegal possession, use, sale, distribution, dispensing, transfer, or manufacturing of a controlled substance or alcohol while at work, company property, or while on company business. This includes marijuana, whether the employee has a prescription, or marijuana is legalized for recreational/medical use in the applicable state. No employee is permitted to go on duty or remain on duty if he or she possesses or is under the influence of an unauthorized controlled substance or alcohol in their system. In addition, employees are not permitted to go on duty or remain on duty if they may be impaired by the presence of any authorized substance.

We also require, if necessary, a fitness-for-duty medical evaluation any time an employee, by his or her actions or behavior, gives UPS reasonable cause to determine whether an employee has violated the UPS Drug and Alcohol Policy.

United Parcel Service will comply with all U.S. Department of Transportation rules and regulations concerning controlled substances and alcohol testing for government mandated classifications of employees.

No Questions Available For This Stage

Crisis Management & Workplace Violence Prevention Policy-deleted-1759439933 (Data) -

Instructions

UPS is committed to a safe working environment, free of threats, intimidation, and physical harm. All employees have a right to work in a safe environment and share the responsibility for assuring each other's safety. UPS has adopted a policy of **zero tolerance with respect to violence in the workplace.**

UPS prohibits violence related conduct, including but not limited to, physical assaults, fighting, threatening comments, intimidation, and the intentional destruction of any company property, employee property, or merchandise. Any comments or behavior that could reasonably be interpreted as an intent to do harm to employees or property will be considered a threat. We also prohibit the possession and/or use of weapons by any employee on UPS property.

Any employee who believes he or she may be the target of violence or threats of violence, or is aware of violent or threatening conduct by another individual that could result in injury to a UPS employee or the destruction of property, has a responsibility to immediately **report the situation to his or her immediate supervisor or manager.** If the employee is unable or prefers not to contact their immediate supervisor or manager, the employee can **promptly contact one of the four management representatives listed below or call the UPS Help Line at 1-800-220-4126 — 24 hours a day.**

Your information will be treated as important and appropriate action, including an investigation, will be taken. If an investigation reveals that this policy has been violated, such conduct will be dealt with appropriately. This may include disciplinary action up to and including termination of employment of person(s) in violation of this policy. Individuals violating laws also may be subject to criminal prosecution.

To the extent possible, investigations will be kept confidential among the employees concerned and those employees who need to be informed in order to complete the investigation. Any employee who brings a report to the attention of the company in good faith and/or provides information related to such a report will not be adversely affected or retaliated against for doing so.

- **Contact:**
- **Human Resources Manager**
- **Labor Relations Manager**
- **Occupational Health management**
- **Security Manager**

No Questions Available For This Stage

California Paid Family Leave Benefits (DE 2511).pdf-deleted-1759439943(Data) -

No Questions Available For This Stage

Honesty in Employment-deleted-1759439959 (Data) -

Instructions

As an employee of United Parcel Service, it is essential that you thoroughly understand how highly we regard honesty from all employees, so much so, that honesty is a company policy.

THE UPS POLICY BOOK STATES:

"We Insist Upon Integrity in Our People. We understand that integrity is fundamental to how we run our business and essential to maintain compliance with our policies and legal requirements. Operating with integrity means we provide an atmosphere in which our people can perform their jobs in an ethical manner. We present our company honestly to employees and, in turn, expect them to be honest with us."

"We expect honesty from our people in all their duties, including their handling of money, merchandise, and property with which they are entrusted. We insist on integrity in the preparation and approval of all reports."

"We all expect our people to be honest in their assessment of themselves, such as the time and commitment they give to their job performance, the fairness they seek in their dealings with others, or the objectivity they use in evaluating their own contributions."

"The great majority of our people are of high moral character. However, when we do discover a dishonest person in our organization, we deal with that individual quickly and firmly. For our company to be known for its integrity, each of us must meet high standards."

CONSEQUENCES OF DISHONESTY

DISHONESTY WILL result in immediate dismissal and possible criminal prosecution.

Since many of the packages you will handle move between states, theft of these shipments is a felony violation investigated by the FBI and other law enforcement agencies. If convicted, the maximum penalty for thefts involving interstate commerce is 10 year imprisonment and/or a fine of $5,000.00.

In addition to theft, there are other types of dishonesty such as: tampering, or the misuse or theft of intellectual properties, privileged information, overgoods, or monies handled by our employee's. (Note: Any and all money you receive each day, must be properly accounted for and turned in at end of your work shift that same day.)

EFFECTS OF A FELONY

A felony is a class of crime more severe than a misdemeanor, and is punishable by imprisonment, a fine, or both. A felony conviction results in a permanent mark on a person's record which may never be removed. This record may cause an individual to suffer severe consequences, and may also cause them to be disadvantaged in other subsequent life pursuits.

OTHER INFORMATION

WE EXPECT all employees to report acts of dishonesty. In an effort to prevent thefts, we have instituted a reward of up to $5,000.00, payable to UPS employees, for information leading to the arrest and conviction of any employee who has stolen merchandise or other valuables from our company.

I have read the above information and I understand the UPS policy that reflects their high regard for honesty. I understand my obligations to maintain personal honesty and prevent the dishonesty of others.

No Questions Available For This Stage

California Disability Insurance Provisions (DE 2515)-deleted-1759439953 (Data) -

No Questions Available For This Stage

Notice of Electronic Monitoring-deleted-1759439949 (Data) -

Instructions

UPS Employees should have no reasonable expectation of privacy when using or communicating over UPS computer systems, devices, networks, IT systems, web sites, mobile applications, telematics devices, or telecommunications devices or technologies. Any and all telephone conversations or transmissions, electronic mail or transmissions, or internet access or usage by an employee by any electronic device or system, including but not limited to the use of a computer, telephone, wire, radio or electromagnetic, photoelectronic or photo-optical systems may be subject to monitoring at any and all times and by any lawful means. Employer monitoring may include employees' use of a computer, telephone, wire, radio or electromagnetic, photoelectric, or photo-optical systems.

No Questions Available For This Stage

Safety Agreement-deleted-1759439921 (Data) -

Instructions

WE STRESS SAFETY THROUGHOUT OUR COMPANY

The safety of our people and of the general public is of utmost importance to us. We train our people to avoid injury to themselves and others in all phases of their work. We do not tolerate unsafe work practices. We encourage the involvement of our people in safety awareness activities and give recognition to employees for safety accomplishments. We are all committed to fostering the most effective safe practices in all our work.

By meeting our own high safety standards, we will be contributing to the well-being of our people, our company, and the communities we serve.

No Questions Available For This Stage

Professional Conduct And Anti-Harassment Policy-deleted-1759439975 (Data) -

Instructions

UPS is proud of its professional and congenial work environment and will take all necessary steps to ensure that our workplace remains pleasant for everyone. In order to maintain a positive work environment, all employees must treat each other with courtesy, consideration, and professionalism. The Company prohibits unprofessional and discourteous actions, even if those actions do not constitute unlawful harassment.

In addition, harassment of any person or group of persons on the basis of race, sex, national origin, disability, sexual orientation, gender identity, veteran/military status, pregnancy, age or religion is a form of unlawful discrimination which is specifically prohibited in the UPS community and which may subject the Company and/or individual harasser to liability. Accordingly, derogatory or other inappropriate remarks, slurs, threats or jokes will not be tolerated. Likewise, inappropriate physical contact will not be allowed in our workplace. In other words, UPS will not tolerate harassment of any employee by anyone for any reason.

Sexual harassment is one example of inappropriate harassing behavior. Specifically, sexual harassment, includes unwelcome sexual advances, requests for sexual favors, or any other visual, verbal or physical conduct of a sexual nature when:

1. Submission to the conduct is made either implicitly or explicitly a condition of the individual's employment;
2. Submission to or rejection of the conduct is used as the basis for an employment decision affecting the harassed employee; or

3. The harassment has the purpose or effect of unreasonably interfering with the employee's work performance by creating an environment that is intimidating, hostile, or offensive to the employee.

Each employee must exercise his or her own good judgment to avoid engaging in conduct that may be perceived by others as harassment. Generally, forms of harassment include, but are not limited to:

1. Verbal: repeated sexual innuendos, racial or sexual epithets, derogatory slurs or remarks, off-color jokes, propositions, threats, or suggestive or insulting sounds;
2. Visual/Non-verbal: derogatory posters, cartoons, or drawings; suggestive objects or pictures; graphic commentaries; leering; or obscene gestures;
3. Physical: unwanted physical contact, including horseplay, touching, interference with an individual's normal work movement, or assault; and
4. Other: making or threatening reprisals as a result of a negative response to harassment

Any employee who witnesses objectionable conduct or believes that he or she is subject to or may be subjected to objectionable conduct must report it immediately to a supervisor or manager, a Human Resources representative, the Human Resources manager, the Employee Relations manager, or the UPS Help Line. These reports may be made verbally or in writing. Do not allow an inappropriate situation to continue by not reporting it, regardless of who is creating that situation. No employee in this organization is exempt from this policy.

In response to such reports, UPS will conduct a prompt and thorough investigation. To the extent possible, investigations will be kept confidential among the employees concerned and those employees who need to be informed in order to complete the investigation. Any employee who brings such a report to the attention of the Company in good faith and/or provides information related to such a report will not be adversely affected or retaliated against. UPS will take immediate and appropriate corrective action whenever it determines that a violation of a policy has occurred. Any employee who violates this policy may be subject to termination or other disciplinary action.

No Questions Available For This Stage

Workplace Violence Prevention Policy from the Business Code of Conduct-deleted-1759439970 (Data) -

Instructions

UPS is committed to a safe working environment, free of threats, intimidation, and physical harm. All employees have a right to work in a safe environment and share the responsibility for assuring each other's safety. UPS has adopted a policy of zero tolerance with respect to violence in the workplace.

UPS prohibits violent conduct, including but not limited to, physical assaults, fighting,

threatening comments, intimidation, and the intentional destruction of any company property, employee property, or merchandise. Any comments or behavior that could reasonably be interpreted as intent to do harm to employees or property will be considered a threat. We also prohibit the possession and/or use of weapons by any employee on UPS property.

Any employee who believes he or she may be the target of violence or threats of violence, or is aware of violent or threatening conduct by another individual that could result in injury to a UPS employee or the destruction of property, has a responsibility to immediately report the situation to his or her immediate supervisor or manager. If the employee is unable or prefers not to contact their immediate supervisor or manager, the employee should promptly contact any Human Resources manager, Occupational Health manager, or Security manager or call the UPS Help Line at 1-800-220-4126 or TTY 800-266-0262.

Employee information will be treated as important and appropriate action, including an investigation, will be taken. If an investigation reveals that this policy has been violated, such conduct will be dealt with appropriately. This may include disciplinary action up to and including termination of employment of person(s) in violation of this policy. Individuals violating laws also may be subject to criminal prosecution.

To the extent possible, investigations will be kept confidential among the employees concerned and those employees who need to be informed in order to complete the investigation. Any employee who brings a report to the attention of the company in good faith and/or provides information related to such a report will not adversely affected or retaliated against. *(page 54 UPS Employee Handbook Guide)*

No Questions Available For This Stage

Onboarding Information (Paycheck and Opt Out States) (Multistage) - *Completed 07/17/2024 06:57PM*

POST OFFER: EEOC - Voluntary Self-Identification of Disability-deleted-1751231554 (Data) -

Instructions

Form CC-305

Page 1 of 1OMB Control Number 1250-0005

Expires 05/31/2023

Why are you being asked to complete this form?

We are a federal contractor or subcontractor required by law to provide equal employment opportunity to qualified people with disabilities. We are also required to measure our progress toward having at least 7% of our workforce be individuals with disabilities. To do this, we must ask applicants and employees if they have a disability or have ever had a disability. Because a person may become disabled at any time, we ask all of our employees to update their information at least every five years.

Identifying yourself as an individual with a disability is voluntary, and we hope that you will choose to do so. Your answer will be maintained confidentially and not be seen by selecting officials or anyone else involved in making personnel decisions. Completing the form will not negatively impact you in any way, regardless of whether you have self-identified in the past. For more information about this form or the equal employment obligations of federal contractors under Section 503 of the Rehabilitation Act, visit the U.S. Department of Labor's Office of Federal Contract Compliance Programs (OFCCP) website at www.dol.gov/ofccp.

How do you know if you have a disability?

You are considered to have a disability if you have a physical or mental impairment or medical condition that substantially limits a major life activity, or if you have a history or record of such an impairment or medical condition. Disabilities include, but are not limited to:

- Autism
- Autoimmune disorder, for example, lupus, fibromyalgia, rheumatoid arthritis, or HIV/AIDS

- Blind or low vision
- Cancer
- Cardiovascular or heart disease
- Celiac disease
- Cerebral palsy
- Deaf or hard of hearing
- Depression or anxiety
- Diabetes
- Epilepsy
- Gastrointestinal disorders, for example, Crohn's Disease, or irritable bowel syndrome
- Intellectual disability
- Missing limbs or partially missing limbs
- Nervous system condition for example, migraine headaches, Parkinson's disease, or Multiple sclerosis (MS)
- Psychiatric condition, for example, bipolar disorder, schizophrenia, PTSD, or major depression

No Questions Available For This Stage

Payroll Options-deleted-1751231556 (Data) -

Instructions

Below are your available options for receiving pay. If you already have an existing bank account, it's as easy as providing the account and bank routing number. If you do not have an existing bank account, you may have the option to sign up to have your pay direct deposited to a U.S. Bank Focus Card.

No Questions Available For This Stage

Post Offer: EEOC - Invitation to Self - Identify, Military/Veteran Status-deleted-1751231563 (Data) -

Instructions

This employer is a Government contractor subject to the Vietnam Era Veterans' Readjustment Assistance Act of 1974, as amended by the Jobs for Veterans Act of 2002, 38 U.S.C.4212 (VEVRAA), which requires Government contractors to take affirmative action to employ and advance in employment: (1) disabled veterans; (2) recently separated veterans; (3) active duty wartime or campaign badge veterans; and (4) Armed Forces service medal veterans. These classifications are defined as follows:

- A "disabled veteran" is one of the following:
- A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs; or
- A person who was discharged or released from active duty because of a service-connected disability.
- A "recently separated veteran" means any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S.military, ground, naval, or air service.
- An "active duty wartime or campaign badge veteran" means a veteran who served on active duty in the U.S. military, ground, naval or air service during a war, or ¡n a campaign or expedition for which a campaign badge has been authorized under the laws administered by the Department of Defense. "Period of War" is defined for these purposes by the Department of Labor as:

- June 27, 1950 – January 31, 1955 (Korean Conflict);
- February 28, 1961 – May 7, 1975 (for veterans serving in the Republic of Vietnam);
- August 5, 1964 – May 7, 1975 (for all other veterans who served during the Vietnam conflict); and
- August 2, 1990 – present (Gulf War)

Information on the wars, campaigns, or expeditions for which a campaign badge has been authorized may be found on the following website, https://www.opm.gov/policy-data-oversight/veterans-services/vet-guide/.

An "Armed forces service medal veteran" means a veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.

Protected veterans may have additional rights under USERRA - the Uniformed Services Employment and Reemployment Rights Act. In particular, if you were absent from employment in order to perform service in the uniformed service, you may be entitled to be reemployed by your employer in the position you would have obtained with reasonable certainty if not for the absence due to service. For more information, call the U.S. Department of Labor's Veterans Employment and Training Service (VETS), toll-free, at 1-866-4-USA-DOL.

As a Government contractor subject to VEVRAA, we are required to submit a report to the United States Department of Labor each year identifying the number of our employees belonging to a "protected veteran" category. If you believe you belong to any of the categories of protected veterans listed above, please indicate by checking the appropriate box below.

PLEASE CHOOSE ONE OF THE FOLLOWING CLASSIFICATIONS:

- I have never served in the U.S. Military
- I identify as one or more of the classifications of protected veteran listed above
- I identify as one or more of the classifications of protected veteran listed above and am currently serving in the U.S. military
- I am currently serving in the U.S. military
- I am a U.S. military veteran, but not a protected veteran listed above
- I choose not to voluntarily self-disclose whether I am a U.S. military veteran or a non-veteran

If you are a disabled veteran it would assist us if you tell us whether there are accommodations we could make that would enable you to perform the essential functions of the job, including special equipment, changes in the physical layout of the job, changes in the way the job is customarily performed, provision of personal assistance services or other accommodations. This information will assist us in making reasonable accommodations for your disability.

Submission of this information is voluntary and refusal to provide it will not subject you to any adverse treatment. The information provided will be used only in ways that are not inconsistent with the Vietnam Era Veterans' Readjustment Assistance Act of 1974, as amended.

The information you submit will be kept confidential, except that (i) supervisors and managers may be informed regarding restrictions on the work or duties of disabled veterans, and regarding necessary accommodations; (ii) first aid and safety personnel may be informed, when and to the extent appropriate, if you have a condition that might require emergency treatment; and (iii) Government officials engaged in enforcing laws administered by the Office of Federal Contract Compliance Programs, or enforcing the Americans with Disabilities Act, may be informed; and (iv) UPS may also use your veteran status for internal reporting on our goals for diversity and inclusion as well as to help plan recognition opportunities for our veterans (i.e., Veteran's Day)..

UPS maintains an affirmative action program designed to promote the employment and advancement in employment of veterans; including the protected veterans listed above consistent with the requirement of VEVRAA.

No Questions Available For This Stage

Emergency Contact-deleted-1751231570 (Data) -

No Questions Available For This Stage

Education-deleted-1751231574 (Data) -

No Questions Available For This Stage

Personal Information-deleted-1751231565 (Data) -

No Questions Available For This Stage

Pay Card Rule (Rule) - *Completed 07/17/2024 06:57PM*

E&Y WOTC (E&Y WOTC) - *Completed 07/17/2024 06:57PM*

Training Video (Data) - *Completed 07/17/2024 06:52PM*

Instructions

Please watch the safety training video below to help you get ready for your first day on the job. Once complete, you will be able to select your first day of work.

Stage Body

<iframe width="560" height="315" src="https://www.youtube.com/embed/-7SOK6CpRzo?si=9cnSBAUCJomU-pwP" title="YouTube video player" frameborder="0" allow="accelerometer; autoplay; clipboard-write; encrypted-media; gyroscope; picture-in-picture; web-share" referrerpolicy="strict-origin-when-cross-origin" allowfullscreen></iframe>

No Questions Available For This Stage

Hired Date (Scheduler) - *Completed 07/17/2024 07:06PM*

Attended

N/A

Scheduled

~~07/22/2024 04:00PM - 08:00PM (PDT)~~ *Cancelled 07/21/2024 03:59AM*

Location

11800 S HARLAN RD LATHROP California 95330

Host

UPS Jobs

I-9 Section 2 Not Complete (Custom) - *Completed 07/17/2024 07:18PM*

Instructions

Almost done! The next step is to complete section 2 of your I-9 form. Check out this video for a step-by-step guide to completing section 2: https:/UPSjobs.link/i9help

You'll receive an e-mail from Equifax with instructions. The e-mail will be sent from i-9management@equifax.com. It's very important that you complete this step as soon as possible and before your first day of work.

If you have any questions, call 833-480-0064 and select option 3.

Thank you,

UPS Employment Center

Ready to Hire (Custom) - *Completed 07/21/2024 03:59AM*

Instructions

You have now completed the application process. You will receive a welcome e-mail 24 hours prior to your scheduled start date at the email address you submitted with your application. This e-mail will include all necessary information for preparing for your first day of work.

If you have any questions or do not receive this e-mail message, please call 833-480-0064.

Rejected (Rejected) - *Current Stage*

Instructions

Stage Body

This opportunity was not a match at this time. However, there are many other opportunities at UPS across a variety of roles, schedules, and availability — including full-time, part-time, seasonal, and year-round positions. Click below to explore more at UPSjobs.com, and be sure to sign up for job alerts to be the first to know when new openings become available.

Explore Jobs at UPS

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Compliance Center - Deprecated (Equifax Compliance Center) - *Completed 07/17/2024 07:05PM*

Rejected (Rejected) - *Current Stage*

Instructions

Stage Body

This opportunity was not a match at this time. However, there are many other opportunities at UPS across a variety of roles, schedules, and availability — including full-time, part-time, seasonal, and year-round positions. Click below to explore more at UPSjobs.com, and be sure to sign up for job alerts to be the first to know when new openings become available.

Explore Jobs at UPS

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LATHROP HUB (CALAH) - 06 - Sourcing Only

Job Selector (Job Selector) - *Completed 07/17/2024 06:46PM*

Instructions

Due to high demand, please be aware you may not find the role you originally applied for as UPS roles often fill before they can be unposted from job boards.

This page is designed to help you find a role that best fits your needs (e.g., preferred location, different pay/hours). The miles displayed in the descriptions represent the approximate distance from your home zip code to that facility.

Being on time is very important at UPS, so please ensure your commute distance and time is manageable on a consistent basis. If you do not see a role that fits your needs, we encourage you to sign up for job alerts on upsjobs.com.

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Telephone: (279) 895-6501

Attorneys for Defendant United Parcel Service, Inc.

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,

Defendants.

Case No.:

NOTICE OF INTERESTED PARTIES AND CORPORATE DISCLOSURE STATEMENT BY DEFENDANT UNITED PARCEL SERVICE, INC.

Action Filed: July 15, 2026 in the Superior Court of the State of California for the County of San Joaquin, Case No. STK-CV-UWT-2026-0009113

TO THE HONORABLE COURT, PLAINTIFF, AND THEIR ATTORNEYS OF RECORD:

Pursuant to Rule 7.1 of the Federal Rules of Civil Procedure Defendant United Parcel Service, Inc., states:

1. Defendant United Parcel Service, Inc., at the time this action was commenced, and still is a corporation organized under the State of Ohio, with its principal place of business in the State of Georgia.

2. There are no entities or affiliates of publicly traded corporations that hold a ten percent or greater ownership in United Parcel Service, Inc.

3. Defendant United Parcel Service, Inc. is not aware of any conflict, financial or otherwise, that the parties to this litigation have with the presiding judge because a judge has not yet been assigned to this matter. United Parcel Service, Inc. will supplement this Certification if it is aware of a conflict once a judge is assigned.

4. Defendant United Parcel Service, Inc. is not aware of any persons, associations of persons, firms, partnerships, corporations, or any other entities, other than the parties themselves and the attorneys of record, that have a financial interest of any kind in the subject matter in controversy or in a party to the proceeding or any other kind of interest that could be substantially affected by the outcome of the proceeding. United Parcel Service, Inc. will supplement this Certification if it becomes aware of an interest other than that of the named parties and the attorneys of record to report.

5. The undersigned, counsel of record for United Parcel Service, Inc., certifies that the following listed party (or parties) may have a pecuniary interest in the outcome of this case. These representations are made to enable the Court to evaluate possible disqualification or recusal:

a. Brendan Ngehsi Newanforbi, also known as Brendan Ngwanforbi, Plaintiff
    i. Plaintiff is in Pro Per.
b. United Parcel Service, Inc., Defendant
    i. Defendant is represented by Vanessa W. Mott, Esq., and Alyssa R. Daskas, Esq., from Martenson, Hasbrouck & Simon LLP

/ / /

/ / /

DATE: August 20, 2026

MARTENSON, HASBROUCK & SIMON LLP

By: */s/ Vanessa W. Mott*
VANESSA W. MOTT
ALYSSA R. DASKAS
Attorneys for Defendant
UNITED PARCEL SERVICE, INC.